No. 25-129788-S

IN THE
SUPREME COURT OF THE
STATE OF KANSAS

GOVERNOR LAURA KELLY,
in her official capacity,
Petitioner,

vs.

KANSAS ATTORNEY GENERAL KRIS KOBACH,
in his official capacity,
Respondent.

REPLY BRIEF OF PETITIONER

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Introduction

Governor Kelly, her executive agencies, and the interests of Kansans, cannot be left without any legal recourse because of a decision (or insubordination) of a lower-ranking elected officer. The Attorney General's request to solely control the State's litigation interests will result in unchecked power. As the U.S. Supreme Court put it: "[W]hen a State chooses to allocate authority among different officials who do not answer to one another, different interests and perspectives, all important to the administration of state government, may emerge." *Berger v. N.C. State Conf. of NAACP*, 597 U.S. 179, 191 (2022). Courts should grant "[a]ppropriate respect for these realities." *Id.*

The Governor respects the Attorney General's role as our State's chief legal officer. That is precisely why she requested that his office initiate litigation in pertinent cases—he is the State's preferred legal counsel. Indeed, Governor Kelly agrees with many of the basic points in the Attorney General's briefing about the allocation of litigation authority under Kansas law. But he takes an extreme position—unsupported by law or history—when he claims for himself the exclusive prerogative as kingly gatekeeper to the courthouse for any and all of Kansas government. Under his ("unitary litigation control"?) theory, all parts and officials of Kansas government must obtain the gatekeeper's blessing (even if he declines that blessing on partisan and political grounds) before the interests of Kansas may be represented in and

presented to a state or federal court.

As explained previously and further elaborated below, Kansas law and history do not support the Attorney General's kingly gatekeeper theory. Neither the Attorney General nor the amici have nor are willing to answer the fundamental question here: is the Governor, as the supreme executive of Kansas, without legal recourse to the federal courts to address harm to Kansas in all circumstances unless and until the Attorney General gives his blessing to such recourse? Because of a policy decision of an inferior executive branch officer?

Instead, they repeatedly erect straw men to distract from the central question. Their position amounts to a remarkable assertion of authority for the Attorney General—one that is unlikely to serve the long-term interests of other statewide elected officials or the Legislative Coordinating Council (LCC). But our framers did not create a kingly Attorney General, and the Legislature may not do so in contravention of the Constitution.

To be clear, the Governor is not asserting or seeking a federal "unitary executive" theory (one of the other side's repeated straw men). (Defendant's Brief, 11, 18–19, 25–28; Kansas Commissioner of Insurance Brief, 1–11). Kansas has not adopted that system.[1] But it did bestow authority on the

[1] This seems to be the primary argument of the amici and is repeatedly asserted by the Attorney General. Governor Kelly agrees that Kansas does not have a unitary executive

Governor as "supreme executive" and chief magistrate. The Governor seeks recognition and protection of that authority.

Arguments and Authorities

I. Precisely because Kansas does not have a unitary executive system the interests of Kansas may be represented and expressed by more than one voice in litigation.

This litigation proves that Kansas does not have a unitary executive and may speak with more than one voice in court. This Court now has briefs on the questions presented from the Governor, the Attorney General, the other statewide-elected executive officers, and the LCC. Somehow, everyone with a claim to the interests of Kansas is finding a voice in this litigation. And that is all the Governor is actually seeking here.

1. The Governor does not seek to control the Attorney General or any other constitutional executive officer. But she does seek to exercise her "supreme executive" authority and be allowed a voice in litigation that she deems in the interest of Kansas. She is not seeking to be the sole voice or the gatekeeper. She wants her voice, the voice which the Kansas Constitution bestows on her for the benefit of Kansas.

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system and has never claimed otherwise. Indeed, in the leadup to the 1972 constitutional amendments that reorganized the executive branch, Governor Docking advocated for a unitary executive, arguing "[a]ll other executive officers now elected should be made appointive." *Message of Governor Robert B. Docking to the Kansas Legislature* (Jan. 16, 1969). His unitary executive approach was rejected by the amendments actually proposed and ratified.

Just like the LCC and statewide-elected executive officers hired counsel to assert their interests in this case, Governor Kelly seeks authority to do the same in other litigation currently pending in federal court. Neither Governor Kelly, the other state executive officials, nor the LCC have entered litigation in the *name of the State*. Nor does the Governor wish to do that—that is the Attorney General's job. But, as "supreme executive," the Governor has both the responsibility and the authority to seek protection of our *State's interests*, in her official capacity as Governor and join litigation in order to do so.

2. Another red herring the Attorney General and amici raise is that the Kansas Constitution would "not contemplate a confusing system in which two executive branch officers would vie for control" in litigation and the Attorney General agrees it would "lead to confusion and legal difficulties." (LCC Amicus Curiae Brief, 9; Respondent's Brief, 6.) But that is the very nature of state constitutions that divide executive power among multiple officials, and quite a common result under state constitutions.

Logically, the result not only follows from constitutional text, structure, history, and precedent but it also does not present insurmountable problems. Again, this case itself is an example: is this case impossible to decide because various state actors and entities are asserting varying State interests? Or on resolving legal questions, is a federal court incapable of considering the views of both a Governor supporting the plaintiffs and an Attorney General

supporting the defendants? The U.S. Supreme Court does not think so and has explicitly recognized that states may speak in federal court with more than one voice. *See Berger*, 597 U.S. at 191.

3. The Kansas Constitution creates neither queens nor kings—quite the contrary, it purposely distributes power among numerous entities and officials. And our history refutes any notion that a Governor will become royalty if allowed to assert their litigation authority. After this Court decided *Dawson* in favor of the Governor's power with respect to litigation over 114 years ago, Attorney General Dawson cried foul, claiming the Court's decision created a "one-man government." *Dawson Assails Supreme Court*, The Topeka Daily Capital, Dec. 29, 1911, p.1 (Opening Brief, Ex. 5). But until now, the Court has not had another such case. The parade of horribles is another straw men and, like the others, chimerical.

Nor did our Constitution anoint the Attorney General a king. His arguments here seek to merge in him both counsel and client. In other words, he claims his client is the State, but he alone decides what he will or will not do as the State's lawyer. What about the rules of ethics and common sense—from what clients is the Attorney General taking direction? Apparently only himself. That would be a kingship.

The Attorney General bemoans the Governor's alleged effort (again, a mischaracterization of her argument) to consolidate executive power in herself.

Yet, the Attorney General would reserve to himself an exclusive authority far greater than any authority of the Governor—the sole power to divine the State's interests. That position is a guise for the Attorney General to pursue his own partisan and political interests because his amorphous blob of a "client" cannot otherwise speak or contradict him. The Governor agrees that the Kansas Constitution does not crown kings or queens.

II. The Attorney General's statutory and common law powers do not override the Governor's constitutional role as supreme executive or her authority to bring suit in her official capacity.

Governor Kelly, the Attorney General, and the LCC all agree the Attorney General has broad statutory authority under K.S.A. 75-702 to direct and control the litigation of Kansas. But that does not answer the question here, which is the extent of the Governor's power as "supreme executive" of Kansas, as explained below:

1. The LCC and the Attorney General claim that Governor Kelly's position "trivializes" the Legislature's power to delegate litigation authority to the Attorney General. (Respondent's Brief, 17; *see generally,* LCC Amicus Curiae Brief). But this Court and Governor Kelly's actions disagree. *Dawson* recognized that through statutes the Legislature gave the Governor additional tools to exercise and fulfill her supreme executive and enforcement powers. "Among these is the assistance of the Attorney General." *State v. Dawson*, 86 Kan. 180, 119 P. 360, 364 (1911).

And certainly, as this Court's cases make clear, the Attorney General may decline requests from the Governor, other state officials, and the Legislature to engage in litigation that would require him to violate ethical duties to the courts. For example, this Court was clear in *Foster* and *Sebelius* that as "an officer of the judicial branch, under the separation of powers of the three branches of government, he was limited and restricted in his conduct before this court by the code of professional ethics." *State ex rel. Foster v. City of Kan. City*, 186 Kan. 190, 197, 350 P.2d 37 (1960); *State ex rel. Morrison v. Sebelius*, 285 Kan. 875, 887, 179 P.3d 366 (2008). The parties agree on these two points.

Indeed, these two points are precisely why the Governor requested the Attorney General's assistance in representing Kansas' interests in pending federal litigation. But he declined and actively opposed any such assistance, ostensibly because the litigation was "meritless" (even though federal courts have entered injunctions in favor of the side the Governor supports). The Governor followed the proper steps here.

Since 1861, the Legislature has expressly authorized the Governor to hire counsel to assist in representing the interests of Kansas. *See* L. 1861, ch. 58, § 2 (the Governor "may, if the public interests require it, employ such counsel as he shall deem proper, to assist in any such action or proceeding"). *See* Exhibit A – 1861 Version of K.S.A. 75-108 & K.S.A. 75-702; *accord Odds*

and Ends, The Topeka Daily Capital, Feb. 28, 1883, p.4 (The Senate Judiciary Committee was of the opinion "[t]he Governor could employ counsel in any pending action."). (Opening Brief, Ex. 3).

The Attorney General's attempt to read "he" in the statute to refer to the Attorney General and not the Governor, (Defendant's Brief, 9 ["'he or she' there plainly refers to the attorney general, not the governor."]), is nonsensical. The language appears in Section 2 of the statute under the heading "GOVERNOR." The statute has separate headings for each state official and prescribes their authority, including a section much further back for the "ATTORNEY GENERAL." Furthermore, § 43 states the Attorney General "shall, also, when required by the Governor or either branch of the Legislature, appear for the State." L. 1861, ch. 58, § 43.

To support his position, the Attorney General cites a few historical documents. (Defendant's Brief, 19–24). And frankly, the Governor largely agrees with these documents. She can enforce the law with the law. That is what she is trying to do by initiating legal proceedings. Similarly, the Governor agrees the Attorney General is the primary litigator for the State and she has *repeatedly* attempted to cooperate with him—but he has refused. Governor Kelly further concurs that the Attorney General brings all litigation in the *name* of the State.

But Attorney General Kobach relies on the views expressed by Attorney

General Kellogg in communications made years after the contrary views expressed by Attorney General Davis's letter to Governor George T. Anthony. So, two early Kansas Attorney Generals had different views about their power. Fine. The dispute does not matter, however, because this Court ultimately resolved it in favor of the Governor and the views of Attorney General Davis in the *Dawson* case. *Dawson* makes clear that Davis was correct and Kellogg was wrong. And that is why neither the Attorney General nor his amici seem to want to discuss *Dawson* in their briefs (one amicus even only discusses the *Dawson* dissent—do they fear asking this court to overrule *Dawson* because they know it is on point, binding precedent?).

2. The Attorney General ironically claims he is fearful of being forced to join alleged "forum-shopped" lawsuits at the request of Governor Kelly (under K.S.A. 75-108). (Defendant's Brief, 8, 26.) For one thing, the statute says nothing about forum; it has no qualifications or restrictions based on forum. Moreover, coming from the Attorney General, the claimed concern is absurd. How many times has the Attorney General brought or joined suits nowhere near Kansas to find favorable forums when suing the prior presidential administration? *See, e.g.*, Brad Cooper, *Kobach's lawsuits against Biden: A deep look into more than 25 cases*, Sunflower State Journal (Sept. 6, 2024) ("'I'll wake up every morning having my breakfast, thinking about what our next lawsuit against Joe Biden is going to be.'"); *see also* Marissa A. Smith,

Politicization of State Attorneys General: How Partisanship is Changing the Role for the Worst, 108 Cornell L. Rev. 517, 536 (2023) ("The current partisan approach to multistate litigation detracts from the SAG role. Filing multistate lawsuits (or failing to do so) for solely political reasons takes SAG discretion too far.").

The Attorney General seeks to have his cake and eat it too. He has exploited and touted his ability to bring and join partisan-motivated lawsuits to challenge federal laws he does not like. But when the Governor seeks to join a challenge to federal laws that will harm tens of thousands of Kansans he balks because the lawsuits are "meritless."

The Governor recognizes the Attorney General has substantial common law powers. Those powers, however, do not vest him with authority to preclude the Governor from using her own constitutional authority to initiate legal proceedings. *See* 7 Am. Jur. 2d Attorney General § 5 (At common law, a state "attorney general does not have the right to countermand the governor where the governor is acting within the bounds of the power given to him."; 7A C.J.S. Attorney General § 51 ("[T]he attorney general is not authorized to interfere with or to direct and control litigation by lawfully appointed statutory officers acting pursuant to the governor's authority and directions.").

3. The Attorney General argues that none of the cases Governor Kelly has joined have anything "to do with the enforcement of Kansas state law."

(Defendant's Brief, 21). That is simply incorrect and irrelevant. For instance, in the SNAP data lawsuit Governor Kelly asked Attorney General Kobach to join or initiate parallel proceedings in the District of Kansas. She sought to enforce the Kansas Cybersecurity Act. *See* K.S.A. 75-7237, et seq., (imposes obligations on executive branch agency heads to "be responsible for security of all data . . . under such agency's purview, irrespective of the location of the data or resources."). Federal actions she is challenging seek to override or preempt Kansas law and the rights of Kansans under Kansas law.

Furthermore, all state officials enforce both federal and state law. Federal law necessarily is supreme and becomes an inextricable part of the fabric of state law. For example, the Attorney General must comply with federal requirements in criminal proceedings in general and perhaps capital punishment proceedings in particular. The underlying crime may be found in state law but enforcing such laws necessarily requires following and enforcing federal law too.

The Governor, like all Kansas officials, must take "an oath or affirmation to support the Constitution of the United States and the constitution of this state, and faithfully to discharge the duties of [her] respective office[]." Kan. Const. art. XV, § 14. Like the Attorney General, the Governor has a "responsibility" to uphold the United States Constitution. *State v. Dawes*, 401

P.3d 190, No. 115,859, 2017 WL 3948398, at *4 (Kan. Ct. App. 2017) (unpublished opinion).

That is what the Governor seeks to do in *State of New Jersey v. U.S. Office of Management and Budget*, 1:25-cv-11816 (D. Mass., filed June 24, 2025). There, the plaintiffs seek declaratory relief, in part, because under the U.S. Constitution's Spending Clause and separation of powers principles, the defendants are unlawfully terminating grants that allegedly no longer effectuate agency priorities even though Congress has appropriated money for an identified objective. Part of the Governor's responsibility for the "enforcement of the laws of this state" is also to comply with her oath of office which requires her to support the U.S. Constitution. The Governor recognized the defendants' unconstitutional actions, and she is obligated through her oath of office and powers as chief executive to ameliorate the harm caused. That is precisely what the Attorney General has claimed to be doing when he has joined or filed multi-state litigation in places other than Kansas; he certainly was not seeking to enforce "Kansas law" directly.

III. This Court's precedent supports Governor Kelly's position that she has litigation authority as "supreme executive" and the Attorney General is not the exclusive gatekeeper.

The briefs filed thus far cite and discuss several decisions of this Court that bear on, indeed largely control, the questions of executive power at issue here. The Attorney General and his amici downplay (and sometimes just

ignore) these decisions.

These cases demonstrate the following points of law:

1. The Governor, under her supreme executive and enforcement powers, possesses the authority to initiate legal proceedings. *Cherokee Nation*, a case the Attorney General wholly fails to address, held: "[T]he Attorney General's statutory authority to take and assume control of the State's defense is subordinate to the Governor's constitutionally-granted Supreme Executive power, and statutorily-granted authority which gives him the right to represent the State and choose his counsel in defense of the action." *Cherokee Nation v. U.S. Dep't of the Interior*, 2025 OK 4, ¶ 37, 564 P.3d 58, 70 (Okla. 2025).

2. The Governor and the Legislature may direct the Attorney General to join litigation, and he may refuse only if it would be unethical to do so. The ethical constraint is grounded in the Attorney General's duties as an officer of the court, and allows him only to refuse participation in frivolous litigation; his refusal cannot be based simply on his ostensible assessment that the litigation will not (or in his view should not) succeed. That is the ethical obligation of any Kansas lawyer representing a client. *Dawson*, 119 P. at 363 ("In harmony with the provisions of the Constitution, and to provide the Governor with means to execute the laws as required by that instrument, the Legislature has declared that he may require the Attorney General to prosecute or defend for the state

in any cause or matter in which the state is interested."); *Foster*, 186 Kan. at 197 ("Since he is an officer of the judicial branch, under the separation of powers of the three branches of government, he was limited and restricted in his conduct before this court by the code of professional ethics to the same extent any other lawyer would be. If, therefore, the attorney general considered the action unmeritorious, he not only had the authority, but he also had a duty to move for dismissal."); *Sebelius*, 285 Kan. at 887 (Attorney General declined to do as Legislature directed because the litigation sought was frivolous).

3. The Governor may not override the discretion of the Attorney General when he is acting as an officer of the court, but this maxim cuts both ways: the Attorney General's discretion does not include the authority to override the Governor's assessments of the interests of Kansas. The import of this is that the Attorney General's litigation interests do not have preclusive effect on the Governor's litigation interests. *Dawson*, 86 Kan. at 187–88; *State ex rel. S. Monroe & Son Co. v. Baker*, 112 Ohio St. 356, 366 (1925) ("The Governor's authority is supreme in the sense that no other executive authority is higher or authorized to control his discretion, where discretion is lodged in him, and yet it is not supreme in the sense that he may dominate the course and dictate the action and control the discretion of other executive officers of inferior rank acting within the scope of the powers, duties, and authorities conferred upon them respectively.").

Conclusion

The Governor seeks limited relief and authority. She wants to participate in litigation where the interests of Kansas are at stake. She gave the Attorney General the first opportunity to do so and he refused. She is not claiming the Attorney General must always do her bidding, nor any other statewide-elected official. They remain free to perform their duties as they see fit. But they cannot interfere with or prevent the Governor from doing the same. Just because the Attorney General stands down does not mean the Governor lacks the authority to stand up for Kansas.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on December 23, 2025, a true and correct copy of the above and foregoing was e-filed with the Court's electronic filing system, which provided notice to all parties who have entered an appearance in this action.

/s/ *Justin H. Whitten*
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Kansas Office of the Governor

Exhibit A

Shall be entitled to all the privileges as before change of name.

SEC. 2. That the said John William Harmon is hereby empowered to sue and be sued, plead and be impleaded, contract and be contracted with, and to do all other legal acts that he was or might be entitled to do, under and by the name of John William Hobbs.

Take effect—when

SEC. 3. This act to take effect and be in force from and after its passage.

Approved June 4, 1861.

CHAPTER LVIII.

AN ACT defining the powers and duties of certain State Officers.

Be it enacted by the Legislature of the State of Kansas:

GOVERNOR.

Governor shall notify the House of approval.

SECTION 1. The Governor, immediately upon his approval of any act or joint resolution of the Legislature, shall notify the House in which the act or joint resolution originated, of such approval; he shall cause all acts and joint resolutions, which have become laws or taken effect by his approval or otherwise, to be deposited in the office of the Secretary of State, without delay.

Laws deposited in office of Secretary of State.

Governor shall notify the Attorney General.

SEC. 2. Whenever the Governor shall receive notice of the commencement of any action or proceeding by which the rights, interests or property of the State shall be liable to be affected, he shall inform the Attorney General thereof, and require him to act in conjunction with the counsel of the proper party, to protect the interests of the State; and, in any such case, or in any action prosecuted or defended in behalf of this State, he may, if the public interests require it, employ such counsel as he shall deem proper, to assist in any such action or proceeding; and, in case of the absence or sickness of the Attorney General, or if he shall be in any way interested adversely to the State in any action or proceeding, the Governor may employ counsel to act in his stead.

May employ assistant counsel.

May employ counsel when Attorney General is absent.

May offer rewards not to exceed five hundred dollars.

SEC. 3. Whenever any criminal, charged with a capital offense or with any felony, shall escape, or whenever any heinous crime has been committed in this State, the Governor may offer a reward for the apprehension and delivery, or conviction of such

criminal, or the perpetrator of such crime; *Provided*, That in no case shall the reward thus offered exceed the sum of five hundred dollars.

Expenses paid out of State treasury.

SEC. 4. All expenses incurred under the two last preceding sections shall be paid out of the State treasury.

Governor may receive the per centum.

SEC. 5. The Governor of this State is hereby authorized and empowered to receive from the treasury department of the United States, from time to time, as he shall see fit to draw for the same, the five per centum of the net proceeds of sales of the public lands to which this State is or shall be entitled, pursuant to the act of Congress approved January 29, A. D. 1861, and to execute the proper vouchers therefor, and shall immediately pay the same into the State treasury, to the credit of the school fund, and shall take a receipt from the Treasurer for the same, and make report thereof in his next annual message to the Legislature.

Shall pay into treasury of the State.

Governor is authorized to distribute the quota of arms.

SEC. 6. The Governor of this State is hereby authorized to distribute the quota of arms and military equipments which the State of Kansas may receive from the Government of the United States, under the provisions of the several acts of Congress providing for arming and equipping the whole body of the militia of the United States. He shall require the officers to whom such arms or equipments are distributed and delivered, to execute, to the State of Kansas, a bond, with two sufficient sureties, to be approved by him, in the penal sum, as near as may be, of double the value of said arms or equipments, conditioned for the safe keeping and delivery of the same, on the order of the Governor.

Shall require bond for arms.

Power to appoint Private Secretary.

SEC. 7. The Governor shall have power to appoint a private secretary, who shall hold his office during the pleasure of the Governor.

If bond is broken the Governor may order suit commenced.

SEC. 8. When the conditions of any bond given by either of the State officers shall be broken, it shall be the duty of the Governor to order the same to be prosecuted. Suit may be instituted and prosecuted to final judgment against such officer or his respective sureties, or one or more of them, jointly or severally, without first establishing the liability of such officer, by obtaining judgment against him.

Governor shall report to each Legislature.

SEC. 9. It shall be the duty of the Governor to communicate to the Legislature, at the commencement of each annual session thereof, the annual reports of all the State officers required by law to report to him, and to do all other acts prescribed by law.

SECRETARY OF STATE.

SEC. 10. The Secretary of State shall, before entering upon

Secretary of State shall take and subscribe an oath.

Shall give bond ten thousand dollars.

the discharge of his duties, take and subscribe the oath prescribed by law, and give a good and sufficient bond, for the sum of ten thousand dollars, with two or more sureties, to be approved by the Governor and Auditor, conditioned for the faithful discharge of the duties of his office, which oath and bond shall be filed in the office of the Auditor.

Shall have access to the seal of State.

SEC. 11. The Secretary of State shall, at all times, have access to the great seal of the State, and may use the same in verification of his official acts, in all cases when such use may not be in conflict with the Constitution of the State or prohibited by law.

Duties of Secretary of State.

SEC. 12. It shall be the duty of the Secretary of State: First, To keep a record of the official [acts] of the executive department of the State, and he shall, when required, lay the same, and all matters relative thereto, before either branch of the Legislature. Second, He shall countersign all official acts done by the Governor, (his approbation of the laws excepted,) and shall make a register of all commissions issued by the Governor, specifying the person to whom given or granted, the office conferred, with the date and tenor of the commission, in a book, to be provided for that purpose. Third, He shall have the custody of all books, records, deeds, bonds, parchments, maps, papers and other articles and effects belonging to the State, deposited or kept in his office, and shall, from time to time, make such provisions for the arrangement and preservation thereof as shall be necessary; and the same, together with all accounts and transactions of his office, shall be open, at all times, to the inspection and examination of the Governor, or any committee of either or both Houses of the Legislature. Fourth, He shall report annually, at least ten days before each regular session of the Legislature, to the Governor, any matters pertaining to his office; he shall, also, when required, furnish the Governor or either branch of the Legislature, in writing, with any information relative to the duties of his office. Fifth, He shall, when required by any person or persons so to do, make out a copy of any law, resolution, deed, bond, record, document or paper, deposited or kept in his office, and shall attach thereto his certificate, under the great seal of the State, and such copy, thus certified, shall, in all cases, be evidence, equally and in like manner as the original; and he shall receive therefor, per folio, ten cents, and, for certificate and seal, fifty cents. Sixth, He shall be charged with the safe keeping of all enrolled laws and resolutions, and he shall not permit the same, or any of them, to

Shall countersign all official acts of Governor.

Shall have custody of all books and other effects.

All accounts and transactions shall be open to inspection.

Furnish information in writing.

Shall copy laws and resolutions.

Such copies so certified, shall be evidence.

Fees.

Charged with the safe keeping of enrolled bills.

be taken out of his office or inspected, unless by order of the Governor, or by resolution of one or both Houses of the Legislature, under a penalty of one hundred dollars. Seventh, He shall deposit, in the office of the treasurer, authenticated copies of all laws authorizing the payment of money out of the State treasury, immediately after the passage of the same. Eighth, He shall keep his office open during business hours, at all times, Sundays excepted.

Penalty of one hundred dollars.

What he shall deposit in the Treasurer's office.

When he shall keep his office open.

SEC. 13. All deeds, conveyances, leases, bonds, mortgages, and other securities for money, belonging to this State, shall, unless otherwise specifically directed, be deposited and preserved in the office of the Secretary of State, and open to public inspection.

What shall be deposited and kept in the Secretary's office.

SEC. 14. The Secretary of State shall have power to appoint a clerk, and require from him such bond as he shall deem proper, and for whose acts the Secretary shall be responsible.

Shall have power to appoint a clerk.

SEC. 15. The chief clerks of the Senate and House of Representatives, at the close of each session of the Legislature, shall deposit, for safe keeping, in the office of the Secretary of State, all books, bills, documents and papers, in the possession of the Legislature, correctly labeled, folded and classified.

The Chief Clerk shall deposit all books in the Secretary's office.

SEC. 16. It shall be the duty of the Secretary of State to cause the original enrolled laws and joint resolutions, passed at each session of the Legislature, together with the index containing the titles of the same, to be bound in a volume, in a substantial manner, and in the order in which they are approved; and no other or further record of the official acts of the Legislature, so far as relates to acts and joint resolutions, shall be required of said Secretary; and he shall, also, cause the title thereof, with the session at which the same shall have been passed, to be written or printed on the back of such volume.

Enrolled laws bound and labeled.

SEC. 17. The Secretary of State shall make his certificate, that the acts and resolutions furnished to the printer are truly copied from the original enrolled laws, and cause the certificate to be printed at the end of each volume of laws published, which shall be prima facie evidence of their correctness.

Shall certify to the printer that the acts are true copies.

SEC. 18. He shall cause the acts of the Congress of the United States and of the several States which may be received at his office, to be deposited in the State library.

Shall cause the acts of Congress to be deposited in library.

SEC. 19. The description, in writing, of the great seal of this State, shall be deposited and recorded in the Secretary's office, and shall remain a public record.

A description of State seal shall be deposited in library.

SEC. 20. It shall be the duty of the Secretary of State to pro-

The Secretary shall furnish books, fuel, lights &c.

cure the necessary furniture, presses, for the safe deposit of the archives of his office, and the necessary books, stationery and fuel for use in the offices of the several Executive officers of the State, and he shall purchase all articles necessary for the use of the members and officers of the Legislature, which he shall charge to the State, in his own name, taking, in all cases, a receipt from the persons from whom the same shall be purchased. He shall, also, see that suitable halls are provided for the use of the Legislature, and all expenditures under this section shall be certified by the Governor, to the Auditor of State, who shall issue his warrants on the Treasurer of State, for the amount of the same.

Shall procure halls, &c., for the Legislature.

The Governor shall certify to the bills of the Secretary.

Shall keep all desks, tables, chairs and furniture.

SEC. 21. At the close of every session of the Legislature, the Secretary of State shall cause all the tables, chairs, desks and other furniture of the two Houses of the Legislature, to be placed in secure rooms, and locked therein, and he shall not permit any part of said furniture to be used during the recess of the Legislature, for any purpose whatever.

Shall perform such other duties as required by law.

SEC. 22. The Secretary of State shall perform such other duties as are or may be imposed upon him by law.

AUDITOR OF STATE.

The Auditor shall take and subscribe an oath.

SEC. 23. The Auditor shall, before entering upon the discharge of his duties as such, take and subscribe the oath of office prescribed by law, and shall enter into bonds to the State of Kansas, in the sum of ten thousand dollars, to be approved by the Governor and Secretary of State, conditioned that he shall faithfully discharge all the duties of the said office, which oath and bond shall be filed in the office of the Secretary of State.

Bond ten thousand dollars.

Bond and oath to be filed in the Secretary's office.

Shall keep a seal.

SEC. 24. The Auditor shall keep an official seal, which shall be used to authenticate all writings, papers and documents required by law to be authenticated from his office, and copies of all papers, writings and documents, legally deposited in his office, which, when so certified and authenticated by the seal of his office, shall be received in evidence, in the same manner and with like effect as the originals.

Auditor's duties.

SEC. 25. It shall be the duty of the Auditor, at all times, to keep the accounts of the State with any State or Territory, and with the United States, and with the several counties of this State; with all public officers, corporations and individuals having accounts with this State. He shall audit all accounts of public officers who are to be paid out of the State treasury, of the members of the Legislature, and all persons authorized to receive money out of the treasury, by virtue of any appropriation made

by law, particularly authorizing such account. The compensation due the members and officers of the Senate, shall be certified by the Secretary thereof, with the exception of his own compensation, which shall be certified by the President of the Senate; and the compensation that may be due to the officers and members of the House of Representatives, shall be certified by the chief clerk thereof, and that of the clerk by the speaker; which said certificate, when made out as aforesaid, shall be sufficient evidence to the Auditor of such persons' claims, respectively, who shall issue his warrant on the treasury for the amount to which such persons shall be entitled.

Who shall certify to accounts.

Shall issue his warrant.

SEC. 26. On ascertaining the amount due any person from the treasury, the Auditor shall issue his warrant on the treasury for the sum due. He shall keep a fair record of all warrants by him drawn, numbering the same in a book, to be by him kept for that purpose.

Shall keep a record of all warrants, and number them.

SEC. 27. The Auditor shall, in all cases, personally sign all warrants for money upon the treasury of the State, all tax receipts, and all other papers proper and necessary for the Auditor to sign.

Shall personally sign all warrants and receipts.

SEC. 28. In all cases where warrants for money are issued by the Auditor, upon the Treasurer, the said warrants, before they are delivered to the person or persons for whose benefit the same are drawn, shall be presented by the Auditor to the Treasurer, who shall personally countersign the same, and shall also enter into a book, to be by him kept for that purpose, the date, amount, and the name of the person or persons to whom the same are made payable.

Warrants shall be first countersigned by the Treasurer.

Warrants to be entered in a book.

SEC. 29. The said Auditor shall make a fair list of all accounts by him audited, in a book, to be by him kept for that purpose, as also an account of all taxes or other moneys which may be due by any person to this State, or which may be paid into the treasury. He shall make out and present to the Governor, at least ten days before the commencement of each regular session of the Legislature, a report, showing the amount of warrants by him drawn on the treasury, stating particularly on what account said warrants were drawn; and, if drawn upon the contingent fund, to whom and for what purpose they were issued. He shall, also, report the amount of money received into the treasury, stating particularly the source of revenue from which the same may be derived. He shall, also, suggest plans for the improvement and management of the public revenues.

Shall keep a list of all accounts.

Shall make a report to the Governor.

Shall report the amount of money in the treasury, and how derived.

Shall suggest plans to improve revenues.

Shall prepare forms and transmit them to county officers.

SEC. 30. The Auditor of State shall, from time to time, prepare and transmit to the county commissioners of each county, such general forms and instructions in conformity with the laws in force, as, in his opinion, may be necessary to secure uniformity in assessing, charging, collecting and accounting for the public revenues; and the county commissioners, assessors and treasurers shall pursue and observe such forms and instructions.

What shall be necessary for the commencement of an action.

SEC. 31. When the Auditor shall have made out abstracts of all sums due in the respective counties, and sent them to the different treasurers or collectors, he shall make out, in a book to be kept for that purpose, a fair account against each collector, a certified copy of which, with the seal of his office thereto attached, shall be sufficient for the Attorney General or District Attorneys to proceed, by motion or action, against such delinquent collectors and their securities, before the Supreme or District Court. All quietuses necessary to be granted shall issue by the Auditor, under his hand and seal of office.

All quietuses shall be granted by Auditor, under seal.

If a warrant be lost, how duplicate be procured.

SEC. 32. If any Auditor's warrant shall be lost, mislaid or destroyed so that the same cannot be presented for payment by the person entitled thereto, it shall be lawful for the Auditor, at any time before the warrant shall be paid at the treasury, to issue a duplicate warrant to the person or persons having so lost any warrant as aforesaid, on such person filing with the Auditor an affidavit, in writing, sworn before some person duly authorized to administer oaths, stating the loss or destruction of any such warrant; and the Auditor shall immediately certify the same to the Treasurer, who shall thereby be authorized to pay any such duplicate warrant; *Provided*, If any such warrant shall be, at the time of such loss or destruction, which fact shall be ascertained by the oath of the party making such application, or otherwise negotiable, then, before such certificate shall be given by the Auditor, such person shall give him satisfactory security for the refunding of the amount, together with all costs and charges, should the State be afterwards compelled to pay the original warrant.

Security shall be given.

The Auditor shall annually report to the Legislature.

SEC. 33. It shall be the duty of the Auditor to annually report to the Legislature, a detailed estimate of the expenditures to be defrayed from the treasury for the ensuing year, specifying therein each object of expenditure, and distinguishing between such as are provided for by permanent or temporary appropriations, and such as are required to be provided by law, and showing the means from which such expenditures are to be defrayed.

SEC. 34. The Auditor shall, on the fourth Mondays of June

and December in each year, examine the books and accounts of the treasurer, and the moneys on hand in the treasury, and, immediately thereupon, report the result of such examination, in writing, to the Governor, specifying therein the amount, and kinds of funds, particularly; he shall, also, discharge such other duties as may be prescribed by law.

Auditor shall examine the books of the Treasurer.

Discharge other duties.

THE AUDITOR AS LIBRARIAN.

SEC. 35. The books, pamphlets, maps and charts belonging to the State, now in the State library, or which shall hereafter be added to the same, shall compose the State library, and be kept in the office of the Auditor of State, who shall be ex-officio Librarian.

What shall compose the State Library.

The Auditor to be Librarian.

SEC. 36. Books may be taken from the State Library by the members of the Legislature and its officers, during the session of the Legislature, and by the officers of the Executive Department of the State, Justices of the Supreme Court and Judges of the District Courts; *Provided*, That no person shall be permitted to take or detain from the library more than two miscellaneous works at any one time, or take the same away from the capital.

Regulations of the State Library.

SEC. 37. The Librarian shall cause to be kept, a register of all books issued and returned, at the time they shall be so issued and returned, and none of the books, except the laws, journals and reports of this State, which may be taken from the library, shall be detained more than two weeks; and all the books taken out by officers or members of the Legislature, shall be returned at the close of the session.

Librarian's duties.

SEC. 38. If any person injure or fail to return any book taken from the library, he shall forfeit and pay to the librarian, for the use of the library, double the value thereof, or of the set to which it belongs; and, before the Auditor shall issue his warrant in favor of any person authorized to take books from the library, for the value of his services or amount of his salary, he shall be satisfied that such person has returned all books taken from the library or settled for the same, otherwise he shall deduct all accounts for the detention or injury of such books.

If books are injured, how reparation to be made.

SEC. 39. The librarian shall, at least ten days before the annual session of the Legislature, report to the Governor the condition of the library, stating the number of volumes contained therein, the number of volumes purchased during the past year, and the cost thereof, the number of volumes received by donation, the number of volumes injured or not returned, if any, and

Report to the Governor ten days before the Legislature.

the amount received in compensation therefor, and such suggestions and further information as may be deemed by him desirable.

Two hundred dollars shall annually be appropriated to use of library.

SEC. 40. Two hundred dollars shall be annually appropriated for the use of the library, which amount, together with the amount received from fines and forfeitures, shall be annually expended in the purchase of additional books, under the direction of a board of trustees, to consist of the Governor, Secretary of State and Librarian. The said board of trustees shall have power to make such rules, not inconsistent with this act, for the regulation of the library as they may deem proper, and may prescribe penalties for any violations thereof, which shall be collected in the same manner as for the non return or injury of any book.

Governor, Secretary of State and Auditor shall be a board to replenish the library.

May prescribe penalties for violations.

Make out a catalogue of books.

SEC. 41. It shall be the duty of the librarian to make out a written catalogue, conveniently arranged, in alphabetical order, of all books, maps and pamphlets in the library, adding thereto as the library is increased, which shall be kept for the use of those authorized to withdraw books. He shall, also, make out and post, in some conspicuous place, a statement of the rules and regulations of the library.

ATTORNEY GENERAL.

The Attorney General, before entering upon the duties of his office, shall take an oath.

SEC. 42. The Attorney General, before he enters upon the duties of his office, shall take and subscribe the oath required by law, and shall execute, to the State of Kansas, a bond, with not less than two sureties, in the sum of five thousand dollars, to be approved by the Governor, conditioned for the faithful performance of his duties as Attorney General, which bond and oath shall be filed in the office of the Secretary of State.

Oath and bond to be filed with Secretary.

Duties of Attorney General.

SEC. 43. The Attorney General shall appear for the State, and prosecute and defend all actions and proceedings, civil or criminal, in the Supreme Court, in which the State shall be interested or a party, and shall, also, when required by the Governor or either branch of the Legislature, appear for this State and prosecute or defend, in any other court, or before any officer, in any cause or matter, civil or criminal, in which this State may be a party or interested.

Prosecute any official bond when required.

SEC. 44. It shall be the duty of the Attorney General, at the request of the Governor, Secretary of State, Auditor, Treasurer or Superintendent of Public Instruction, to prosecute any official bond, or any contract in which the State is interested, deposited with either of them, upon a breach thereof, and to prosecute or defend for the State, all actions, civil or criminal, relating to any matter connected with either of their departments.

SEC. 45. The Attorney General shall consult with and advise district or county attorneys, when requested by them, in all matters pertaining to the duties of their office. He shall, also, when required, give his opinion, in writing, without fee, upon all questions of law submitted to him by the Legislature, or either branch thereof, or by the Governor, Secretary of State, Auditor, Treasurer, or Superintendent of Public Instruction. Consult and advise with County Attorney. Give his opinion without fee.

SEC. 46. Whenever requested by the Secretary of State, Auditor, Treasurer, or Superintendent of Public Instruction, he shall prepare proper drafts for contracts, forms or other writings, which may be wanted for the use of the State, and he shall report to the Legislature, or either branch thereof, whenever requested, upon any business pertaining to the duties of his office. Prepare proper drafts.

SEC. 47. All moneys received by the Attorney General, belonging to this State, shall, immediately upon the receipt thereof, be paid by him into the State Treasury. Pay all moneys received.

SEC. 48. The Attorney General shall keep, in proper books, to be provided for that purpose, at the expense of the State, a register of all actions and demands, prosecuted or defended by him in the behalf of the State, and all proceedings had in relation thereto, and shall deliver the same to his successor in office. Keep a record of all actions. Deliver same to successor.

SEC. 49. When the Attorney General shall be interested in any cause or proceeding, civil or criminal, which it is or shall be made his duty to prosecute or defend, the court in which such cause is pending or to be brought, may appoint some competent person to prosecute or defend such cause; and, in all cases when the Attorney General shall be absent or sick, and unable to attend to the discharge of his duties, the court in which any of his duties are required to be performed, may appoint some competent person to discharge such duties until the Attorney General shall appear and resume the discharge of his duties; and the person so appointed shall possess the same power in relation to such causes and the business in such court, and shall be entitled to the same fees therefor as would have been allowed the Attorney General for such service. When the Attorney General is interested in any cause, the Governor shall appoint. When sick or absent, a suitable person shall be appointed in place. Substitute shall have the same fees.

SEC. 50. The Attorney General shall perform such other duties as may be required of him by law. Perform what duties.

MISCELLANEOUS.

SEC. 51. It shall be the duty of the officers of the Executive Department of the State, in their annual reports, to mention all the apparent defects, inconsistencies, omissions, unequal or op- Officers of the Executive Department shall mention, in their reports, all apparent defects.

pressive laws which they shall have severally discovered, for the purpose of enabling the Legislature to make such amendments as will tend to perfect the code of the State.

Deliver over all books, papers, documents, &c.

SEC. 52. They shall deliver over to their successors in office, or to any other person authorized by law to receive the same, all moneys, books, records, deeds, bonds, documents, maps, papers and other articles and effects belonging or appertaining to their respective offices.

Salaries—when paid.

SEC. 53. The salaries of all State officers shall be paid quarterly.

If any officer refuses to qualify.

SEC. 54. If any State officer shall neglect or refuse to take and subscribe the oath of office, or enter into bonds as required by law, within twenty days after the term of office for which he was elected shall have commenced, the office shall be deemed vacant.

When present State officers shall qualify.

SEC. 55. The present executive officers of the State shall, within twenty days after the passage of this act, take and subscribe the oath of office prescribed by law, and execute, to the State of Kansas, bonds, as herein provided, for the respective offices; and a failure to comply with the provisions of this section shall work a forfeiture of office; *Provided*, This section shall not apply to executive officers who have already filed their bond according to law.

Acts inconsistent with this act, repealed.

SEC. 56. All acts and parts of acts inconsistent with this act are hereby repealed.

Take effect when.

SEC. 57. This act shall take effect and be in force from and after its publication.

Approved June 3, 1861.

CHAPTER LIX.

AN ACT fixing and regulating the Fees of County Officers, Justices of the Peace and Constables.

Be it enacted by the Legislature of the State of Kansas:

What shall be allowed as fees.

SECTION 1. That the persons and officers herein mentioned, shall be entitled to receive for their services the fees and compensation herein allowed, and no other, except as may be hereafter otherwise provided by law.